Introduction to *The Bluebook* & Rules 1-4

Wednesday, February 11, 2026

Today's Training!

- Admissions Resources
- Introduction to *The Bluebook*
- Rules 1-4
- Exercise

Admissions Resources

- Fill out Admissions Registration Form for online *Bluebook* access by Friday, Feb. 13 at 11:59 PM
- Sourcecite Exam
  - Exam: March 28-29, 9 AM-9 PM ET
  - Conflict form due Wednesday, Feb. 18 at 11:59 PM
  - Email Kimberly from Student Accessibility Services (kimberly.mckeown@yale.edu) about accommodations for the Sourcecite Exam
- Reach out to Haley Lucas (EDME) (haley.lucas@yale.edu) about other accommodations

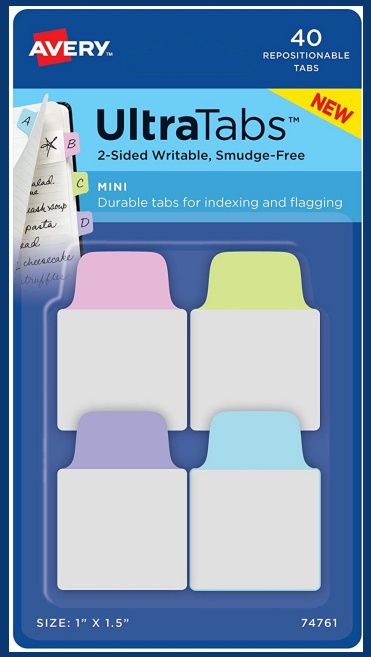
Admissions Resources

- All trainings, events, and materials on Sharepoint!
  - Upcoming Admissions events
  - Note on practice exercises
- Practice Critical Essay released!
  - Due Wednesday, February 18, at 5 PM
  - Continue asking questions about this!
- Admissions Statement will be released Monday, March 2, at 8 AM
  - Due Monday, March 9, at 5 PM
  - First mandatory component of the process!

Admissions Resources

Tabs!

- Will distribute today and at future trainings!
- Entirely optional – many prefer online but…
- Now vs. Later
  - Some prefer to tab their *Bluebook* as they study; others prefer do it after they've finished learning
- Rules vs. "Important Things"
  - Some only tab the first page of each rule for quick access; others like marking subrules that they think will be important or that are confusing.
- *See* "How to Tab Your *Bluebook*" on SharePoint



Admissions Resources

Date & Time	Event	Location
Wed., Jan. 28, 12:10 p.m.	Admissions Overview + Admissions Statement Training	SLB 128
Mon., Feb. 2, 3:10 p.m.	Critical Essay Training #1	SLB 122
Wed., Feb. 4, 12:10 p.m.	Critical Essay Training #2	SLB 128
Wed., Feb. 11, 12:10 p.m.	*Bluebook* Training, Rules 1-4	SLB 129
Mon., Feb. 16, 3:10 p.m.	*Bluebook* Training, Study Strategies*	SLB 122
Wed., Feb. 18, 12:10 p.m.	*Bluebook* Training, Rules 5-9	SLB 128
Mon., Feb. 23, 3:10 p.m.	*Bluebook* Training, Rules 10-11	SLB 122
Wed., Feb. 25, 12:10 p.m.	*Bluebook* Training, Rules 12-14	SLB 128
Mon., Mar. 2, 3:10 p.m.	*Bluebook* Training, Rules 15-17	SLB 122
Wed., Mar. 4, 12:10 p.m.	*Bluebook* Training, Rules 18-21	SLB 128
Mon., Mar. 9, 3:10 p.m.	*Bluebook* Training, Rule 23 & Hyphenation	SLB 122
Wed., Mar. 11, 12:10 p.m.	*Bluebook* Training, Day in the Life: FYE Sourcecite*	SLB 128
Mon., Mar. 30, 3:10 p.m.	Critical Essay Training #3	SLB 122

Admissions Resources

Date & Time	Event	Location
Wed., Jan. 28, 3:30-4:30 p.m.	EIC & EDE & EDME Office Hours	SLB Dining Hall
Tue., Feb. 3, 11 a.m.-12 p.m.	ME Office Hours	SLB Dining Hall
Tue., Feb. 10, 2-3 p.m.	Content EE Office Hours	SLB Dining Hall
Wed., Feb. 18, 4-5 p.m.	DE Office Hours	SLB Dining Hall
Tue., Feb. 24, 1-2 p.m.	EDE & EDME Office Hours*	SLB Dining Hall
Mon., Mar. 2, 2-3 p.m.	DE Office Hours	SLB Dining Hall
Tue., Mar. 10, 2-3 p.m.	DE Office Hours	SLB Dining Hall
Fri., Mar. 27, 2-4 p.m.	EDE & EDME & DE Office Hours*	SLB Dining Hall
Tue., Mar. 31, 1-2 p.m.	EDE & EDME Office Hours	SLB Dining Hall

Introduction

Introduction – *The Bluebook*

Why is *The Bluebook* important?

- Creates uniformity in legal writing
  - The law is all about backing up your claims → law review articles have a million footnotes
- It might feel (and be) arbitrary, but it's a custom in the legal field!
- Knowing *The Bluebook* is useful for:
  - Summer jobs
  - Clinics
  - Substantial (SUB) and Significant Analytical Writing (SAW)
  - The rest of your legal career!
- Putting in the time now will save you so much time later

Structure of *The Bluebook*

The Bluepages	The Whitepages	Tables
• Geared towards practitioners • Easier to understand once you understand the rest of *The Bluebook* • Not tested in *YLJ* Admissions!	• The heart of *The Bluebook* • Rules 1-9: General rules for all sources, regardless of type • Rules 10-23: Source-specific rules • Tested in *YLJ* Admissions	• Helpful indexes that you need to refer to, especially for Rules 10-23 • Table 2 is exclusively online • Tested in *YLJ* Admissions
at 3-64	at 65-256	at 257-354

Introduction – *The Bluebook*

- **You don't need to memorize!**
  - *The Bluebook* is best understood as a <u>reference guide</u>
  - That is, you just need to know (1) that there is a rule for X ,(2) where to find the rule, and (3) how to apply the rule
  - Trying to memorize all the details is likely not a good use of time
- **Sometimes the rules don't have an internal logic, and that's okay!**
- **Pay attention to the <u>examples</u> in *The Bluebook***
- **Practice makes perfect**
  - Learn it incrementally and patiently

Introduction – Sourcecite

What actually *is* a sourcecite?

Answer: On *YLJ*, it is a few different things!

1. "Sourceciting" is the act of correcting citation and source errors in legal work.
   - Also called "cite-checking"
   - Needed for both academic and practical legal work
   - Refers to both formatting and accuracy
2. A "[Piece Name] Sourcecite" (noun) refers to the correction of a particular piece.
3. "[Monday/Tuesday] Sourcecite" (noun) refers to the time during the week when FYEs gather in the Fall to sourcecite (verb) *YLJ* pieces for publication.

Introduction – Sourcecite

What does sourceciting actually entail?

Answer: Again, on *YLJ*, a few different things!

1. Correcting grammatical errors, typos, and logical inconsistencies in the main text and footnotes
2. Correcting citation and formatting errors (pursuant to BB & Style Guide) in the main text and footnotes
3. Correcting the substance of assertions made by the author based on the source and/or flagging such issues to the Lead Editor of the piece

TLDR: In a Sourcecite, you take the first stab at fixing all errors in tracked changes. If there are changes that require discretion, you flag them in an LE Query.

Introduction – Sourcecite Exam

The Sourcecite Exam tests three main "buckets"

1. Source accuracy
   - For example, are the page numbers correct and logical? Volume? Year of publication? Title?
   - Does the cited source substantively support the stated proposition?

2. Format accuracy
   - Does the citation conform to *Bluebook* rules?

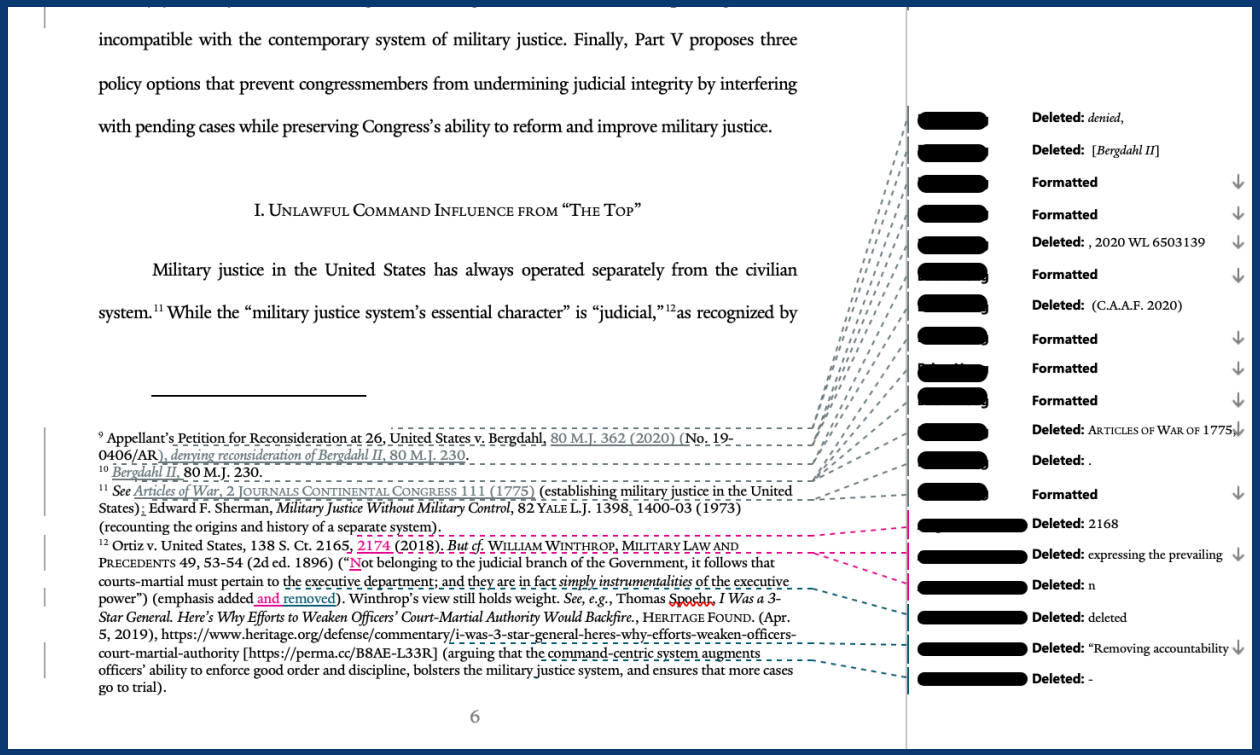
3. Common grammatical errors in the main text

Introduction – Sourcecite Exam

- You will be tested on the following materials:
  - *The Bluebook* (22d ed.)
  - The Volume 136 Style Guide
    - The Style Guide serves as an addendum to *The Bluebook* and is available on SharePoint. **These rules are mandatory.**
    - Know these rules as well as you know *The Bluebook*!
    - Great training for legal practice!
  - *The Bluebook* Corrections Sheet
  - The Hyphenation Guide

Introduction – Sourcecite Exam

- The Sourcecite Exam will be administered digitally
  - You will be making track changes and leaving comments directly to a Word document



incompatible with the contemporary system of military justice. Finally, Part V proposes three policy options that prevent congressmembers from undermining judicial integrity by interfering with pending cases while preserving Congress's ability to reform and improve military justice.

I. UNLAWFUL COMMAND INFLUENCE FROM "THE TOP"

Military justice in the United States has always operated separately from the civilian system.[11] While the "military justice system's essential character" is "judicial,"[12] as recognized by

[9] Appellant's Petition for Reconsideration at 26, United States v. Bergdahl, 80 M.J. 362 (2020) (No. 19-0406/AR), *denying reconsideration of Bergdahl II*, 80 M.J. 230.
[10] *Bergdahl II*, 80 M.J. 230.
[11] *See Articles of War*, 2 JOURNALS CONTINENTAL CONGRESS 111 (1775) (establishing military justice in the United States); Edward F. Sherman, *Military Justice Without Military Control*, 82 YALE L.J. 1398, 1400-03 (1973) (recounting the origins and history of a separate system).
[12] Ortiz v. United States, 138 S. Ct. 2165, 2174 (2018). *But cf.* WILLIAM WINTHROP, MILITARY LAW AND PRECEDENTS 49, 53-54 (2d ed. 1896) ("Not belonging to the judicial branch of the Government, it follows that courts-martial must pertain to the executive department; and they are in fact *simply instrumentalities* of the executive power") (emphasis added and removed). Winthrop's view still holds weight. *See, e.g.*, Thomas Spoehr, *I Was a 3-Star General. Here's Why Efforts to Weaken Officers' Court-Martial Authority Would Backfire.*, HERITAGE FOUND. (Apr. 5, 2019), https://www.heritage.org/defense/commentary/i-was-3-star-general-heres-why-efforts-weaken-officers-court-martial-authority [https://perma.cc/B8AE-L33R] (arguing that the command-centric system augments officers' ability to enforce good order and discipline, bolsters the military justice system, and ensures that more cases go to trial).

6

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This is meant as an example of what a marked-up Word document will look like. Do not refer to this as an example of proper *Bluebook*ing.

Introduction – Sourcecite Exam

Note on LE Queries

LE Queries are extremely helpful tools to communicate efficiently with Lead Editors during the sourceciting process, but they are not a substitute for your job.

As an FYE, you will have access to all of the sources cited in the piece. As such, it will be your responsibility to make those changes directly in the document and not leave an LE Query.

On the Exam, you will not have all of the sources and will leave an LE Query. (More on this later!)

Introduction – Sourcecite Exam

- Many people create "cheat sheets" of important Rules and their common errors as they study
- Akin to an attack outline for the Sourcecite Exam
- Usually on the shorter side
- I will upload my personal cheat sheet to the Sharepoint as an example (may have errors + does not reflect changes to BB 22d ed. or Volume 136 Style Guide – proceed with caution!)

Disclaimer

This PowerPoint is not exhaustive. Please also review *The Bluebook*, Volume 136 Style Guide, and Hyphenation Guide.

Rule 1: Structure and Use of Citations

Basic Structure of a Citation

Signal

See, e.g., STACEY ABRAMS, OUR TIME IS NOW 164 (2018) (explaining the significance of the U.S. census).

Basic Structure of a Citation

Source

See, e.g., STACEY ABRAMS, OUR TIME IS NOW 164 (2018) (explaining the significance of the U.S. census).

Basic Structure of a Citation

Explanatory Parenthetical

See, e.g., STACEY ABRAMS, OUR TIME IS NOW 164 (2018) (explaining the significance of the U.S. census).

Rule 1: Structure & Use of Citations

The Bluebook

- 1.1: Citation Sentences and Clauses
- 1.2: Introductory Signals
- 1.3: Order of Signals
- 1.4: Order of Authorities Within Each Signal
- 1.5: Parenthetical Information
- 1.6: Related Authority

The Style Guide

- S.R. 1.1: Two Claims in One Sentence
- S.R. 1.1(b): String Citations in Textual Sentences in Footnotes
- S.R. 1.3: Order of Signals
- S.R. 1.5 (a)(i): Parenthetical Information
- S.R. 1.5(a)(ii): Parentheticals for Citations, Quotations, and Alterations
- S.R. 1.5(b): Order of Parentheticals within a Citation

Rule 1.1

Some helpful terminology…

On the one hand, as in *American Express*, defendants may gain a litigation advantage if plaintiffs are required to establish net harm in a two-sided market. On the other hand, plaintiffs may gain an advantage by embracing a two-sided market definition to exclude entities that participate in only one side of the market.[5]

This Essay addresses whether the Court's determination that the credit-card market is two-sided was necessary to the outcome in *American Express*. It is not immediately clear why the question whether a relevant market is one-sided or multi-sided should control the plaintiff's prima facie burden of demonstrating anticompetitive effects. The Court's conclusion that the market for credit-card services is two-sided served as shorthand for its conclusion that the plaintiffs could not establish that the challenged practice harmed competition and con-

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4. *Am. Express*, 138 S. Ct. at 2286.

5. The *American Express* decision has attracted a mountain of commentary and criticism from legal scholars, economists, and antitrust practitioners. *See, e.g.*, DAVID S. EVANS & RICHARD SCHMALENSEE, ANTITRUST ANALYSIS OF PLATFORM MARKETS: WHY THE SUPREME COURT GOT IT RIGHT IN *AMERICAN EXPRESS* (2019); Dennis W. Carlton, *The Anticompetitive Effects of Vertical Most-Favored-Nation Restraints and the Error of* AmEx, 2019 COLUM. BUS. L. REV. 93; Daniel Francis & Jay Ezrielev, *Disaggregating Market Definition:* AmEx *and a Plural View of Market Definition*, 98 NEB. L. REV. 460 (2019); Herbert J. Hovenkamp, *Platforms and the Rule of Reason: The* American Express *Case*, 2019 COLUM. BUS. L. REV. 35. A tip of the cap to my co-counsel in *American Express* for his effort in this regard. *See* Evan Chesler & David Korn, *Lessons from* Amex *for Platform Antitrust Litigation*, 98 NEB. L. REV. 345 (2019).

Main text (body) contains propositions that need citations to authorities.

The **call number** is the superscript that indicates a footnote.

Citation sentences are standalone sentences or clauses that provide citations for the entire preceding sentence.

Textual sentences incorporate citations into the actual sentence.

Citation Sentences vs. Clauses

In a footnote, you can…

Place a **citation sentence** after the entire textual sentence, if that authority supports the <u>whole sentence</u>

→

[1] The Court has been reluctant to find these rights enforceable. *See, e.g.*, Fox v. Tiller, 399 U.S. 521, 523 (1968).

If an authority can support only <u>part</u> of the textual sentence in a footnote, you must use **citation clauses** that immediately follow the proposition they support, and you must set the clauses off by commas

→

[2] Some courts have found due-process violations, *see, e.g.*, Fay v. Chen, 231 F.3d 422, 430 (11th Cir. 2015), while others have not, *see, e.g.*, Smith v. Jones, 224 F.3d 315, 336 (9th Cir. 2012).

String Citation Sentences

Citation sentences can (and often do) contain more than one authority! We call these **string citations**, and the authorities are separated by **semicolons**.

Example of a **string citation sentence**:

See, e.g., Flores v. Morgan Hill Unified Sch. Dist., 324 F.3d 1130, 1137-38 (9th Cir. 2003) (describing provocation); State v. Stonehouse, 555 P. 772, 779 (Wash. 1907) (listing excuses).

S.R. 1.1(b)

Textual sentences (as opposed to citation sentences) can also contain multiple citations! Style Guide S.R. 1.1(b) governs:

- Signals are romanized
- Still use semicolons to separate the citations from one another
- Put an "and" to separate the penultimate and last citations, even where there are only two citations
  - DO NOT italicize the "and"
- Explanatory parentheticals still become textual explanations
- Italicize case names and use only certain abbreviations for party names (Rule 10.2.1(c))
- Each signal (regardless if it is the same "type") and the accompanying sources becomes a citation sentence
- We do not use explanatory parentheticals with textual sentences

S.R. 1.1(b)

Example of a **string textual sentence**:

For further discussion of this issue, see, for example, *Flores v. Morgan Hill Unified School District*, 324 F.3d 1130, 1137-38 (9th Cir. 2003), which describes provocation; *State v. Stonehouse*, 555 P. 772, 779 (Wash. 1907), which lists excuses; and WENDY BROWN & JOHN BLACK, STATES OF INJURY: POWER AND FREEDOM 34 (1995), which examines harm.

S.R. 1.1(b)

More examples:

Various other cases discuss this issue. *See, e.g.*, Flores v. Morgan Hill Unified Sch. Dist., 324 F.3d 1130, 1137-38 (9th Cir. 2003) (describing provocation); State v. Stonehouse, 555 P. 772, 779 (Wash. 1907) (listing excuses).

string *citation* sentence

For further discussion of this issue, see, for example, *Flores v. Morgan Hill Unified School District*, 324 F.3d 1130, 1137-38 (9th Cir. 2003), which describes provocation; and *State v. Stonehouse*, 555 P. 772, 779 (Wash. 1907), which lists excuses.

string *textual* sentence

S.R. 1.1(b)

Counterexample!

For further discussion of this issue, see, for example, *Flores v. Morgan Hill Unified School District*, 324 F.3d 1130, 1137-38 (9th Cir. 2003) (describing provocation).

Remember: Citations must either be formatted as a textual sentence <u>or</u> as a citation sentence.

Correct: For further discussion of this issue, see, for example, *Flores v. Morgan Hill Unified School District*, 324 F.3d 1130, 1137-38 (9th Cir. 2003), which describes provocation.

Introductory Signals

Introductory signals are used in citation sentences to introduce sources.

There are four types of introductory signals:

1. Support (no signal, *e.g.*, *accord*, *see*, *see also*, *cf.*)
2. Comparison (*compare . . . , with . . . ; contrast . . . , with . . . .*)
3. Contradiction (*contra*, *but see*, *but cf.*)
4. Background material (*see generally*)

Rule 1.2

Some common signals (but make sure you learn them all):

- [No signal]: (1) source directly states the proposition, (2) source of a quotation, or (3) source mentioned in the text
- *See, e.g.,*: these are some examples of sources that clearly support the proposition
- *See*: source clearly supports the proposition, but there is an inferential step
- *See also*: additional source material that supports the proposition. Usually used after [no signal] or *see* has already been used

Rule 1.2

Important things to remember:

- Only "*E.g.*," is followed by a comma
  - In "*see, e.g.*," the first comma is italicized but the second comma is unitalicized
- Pincites are required for all signals except *see generally*
- *Explanatory parentheticals are required for 6 signals: *see also*, *cf.*, *compare*, *contrast*, *but cf.*, and *see generally*
- Signals in a citation sentence are italicized!

Rule 1.2

Important things to remember:

- Introductory signals can also be converted into regular verbs, which turns the citation sentence into a textual sentence. It's the author's choice.
- In a textual sentence
  - The signal becomes romanized, not italicized!
  - Explanatory parentheticals become textual explanations.
  - *E.g.* becomes "for example" and *cf.* becomes "compare." All the other signals are the same.

Rule 1.2

See, e.g., Christina L. Anderson, Comment, *Double Jeopardy*, 152 U. PA. L. REV. 1181, 1204-07 (2004) (discussing restorative justice as a reasonable replacement for retributive sanctions).

Citation sentence

Rule 1.2

See, e.g., Christina L. Anderson, Comment, *Double Jeopardy*, 152 U. PA. L. REV. 1181, 1204-07 (2004) (discussing restorative justice as a reasonable replacement for retributive sanctions).

Citation sentence

becomes

See, for example, Christina L. Anderson, Comment, *Double Jeopardy*, 152 U. PA. L. REV. 1181, 1204-07 (2004), for a discussion of restorative justice as a reasonable replacement for retributive sanctions.

Textual sentence

Order of Signals

In a string citation, you may have multiple signals.

- Present them in the order listed in Rule 1.2
- Present all signals of the same type (and their corresponding sources) in one citation sentence. Use semicolons to separate sources in the same bucket
- **Signals of different types go in different sentences**

Rule 1.3

Example:

[1]*See* Griggs v. Duke Power Co., 401 U.S. 424, 431 (1971); *see also* Wards Cove Packing Co. v. Atonio, 490 U.S. 642, 645-46 (1989) (construing *Griggs* as prohibiting "facially neutral employment practice[s]"); Regents of Univ. of Cal. v. Bakke, 438 U.S. 265, 369 (1978) (same). *But see* Dothard v. Rawlinson, 433 F.3d 321, 338 (9th Cir. 1989) (holding that *Griggs* prohibited only disparate treatment, not disparate impact).

Order of Authorities

- Sources within each signal are separated by semicolons
- Sources should be ordered in a logical manner
- If one source is more helpful or authoritative than the others cited within a signal, then that source should go first
- Authorities cited in short form are ordered as though cited in full

Parenthetical Information

An explanatory parenthetical's formatting depends on whether it contains a full sentence or merely an explanatory phrase

Direct quote	Explanatory phrase	Both
("[T]acos are delicious.").	(arguing that tacos are delicious).	(explaining that tacos are great because they are "delicious and fun").
• start with a capital letter • include the ending punctuation before the close parenthesis	• does not start with a capital letter • does not have closing punctuation • starts with a present participle (a verb, ending in *-ing*)	• does not start with a capital letter • does not have closing punctuation • starts with a present participle

S.R. 1.5(a)(i)

Style Rule1.5(a)(i): include articles (*e.g.*, "a," "an," "the") in explanatory parentheticals wherever you would use them in ordinary sentences

> *See, e.g.*, State v. Dumlao, 715 P.2d 822, 829 (Haw. Ct. App. 1986) (suggesting that the MPC's EED defense is a partial diminished-capacity defense).

S.R. 1.5(a)(ii)

Parentheticals for Citations, Quotations, and Alterations

- (emphasis in original): never use!
- (footnote omitted)*: use when quoting a passage that includes an internal footnote call number
- (citation omitted)*: use when the quoted language leaves out in-text citations only
- (quoting…): a quotation within a quotation should be attributed to its original source using a citation clause (but only one level of recursion is required)

*Does not apply to omission that follows the last word quoted

Order of parentheticals within a citation

(date) [hereinafter short name] (en banc) (Lastname, J., concurring) (plurality opinion) (per curiam) (alteration in original) (emphasis added) (footnote omitted) (citations omitted) (quoting another source) (internal quotation marks omitted) (citing another source), https://www.domainname.com [https://perma.cc/XYZ] (explanatory parenthetical), prior or subsequent case history.

S.R. 1.5(b)

Bluebook: Louis Loss, *The Conflict of Laws and the Blue Sky Laws*, 71 HARV. L. REV. 209 (1957), (discussing the bewildering array of state laws then governing interstate securities transactions), *reprinted in* LOUIS LOSS & EDWARD M. COWETT, BLUE SKY LAW 180 (1958).

SG: Louis Loss, *The Conflict of Laws and the Blue Sky Laws*, 71 HARV. L. REV. 209 (1957), *reprinted in* LOUIS LOSS & EDWARD M. COWETT, BLUE SKY LAW 180 (1958) (discussing the bewildering array of state laws then governing interstate securities transactions).

Rule 2:

Typography for Law Reviews

Typography for Law Reviews

- Three different typefaces: Roman, *Italics*, AND SMALL CAPS
- Rule 2 is divided into two parts:
  - 2.1: Typeface conventions for citations (citation sentences and citation clauses, which only appear in footnotes)
  - 2.2: Typeface conventions for textual materials (which appear both in main text AND footnote text)

Typeface convention for citations

- In citation sentences and clauses, case names are romanized, not italicized, <u>except</u>:
  - Procedural phrases like *ex rel.*
  - Short form case citations

- [1] Loving v. Virginia, 388 U.S. 1 (1967).
- [2] *Loving*, 388 U.S. at 4.

- Introductory signals are italicized, <u>except</u>:
  - When the signal serves as a verb

- [3] *See, e.g.*, OCTAVIA E. BUTLER, KINDRED (2004).
- [4] See, for example, OCTAVIA E. BUTLER, KINDRED (2004).

Rule 2.2

Typeface convention for textual materials

- In the main text:
  - Case names are italicized
  - Titles of publications are italicized

- In the *Loving v. Virginia*, the Court invalidated Virginia's antimiscegenation statute. The *Yale Law Journal* published a piece analyzing the decision.

- In the footnote text:
  - If a case name is grammatically part of the sentence, it should be italicized
  - If a case name is used in a citation clause embedded in a footnote text, follow 2.1(a)

- [1] This statement was the basis for the determination by the district court, in the now-vacated decision in *United States v. Sabre Corp*. . . .
- [2] There were arguments in the district court that American Express nevertheless had substantial market power, *see* United States v. Am. Express Co., 88 F. Supp. 3d 143, 151 (E.D.N.Y. 2015), but . . .

Rule 3: Subdivisions

Subdivisions

- Governs how to cite parts of sources: volumes, page numbers, footnotes, sections, etc.
- Almost every subdivision has an abbreviation, listed in Table 16
- *YLJ* uses non-breaking spaces between § and whatever follows next
  - PC: "Ctrl" + "Shift" + "space bar"
  - Mac: "option" + "space bar"
- Check for a non-breaking space by pressing: ¶
  - *E.g.*, U.S.·CONST.·amend.·XIV,·§°2.¶

S.R. 3.1

Volumes, Parts, and Supplements

- S.R. 3.1: If the author of an entire volume is cited, the volume number precedes the author's name.
  - 2 FREDERICK POLLOCK & FREDERIC WILLIAM MAITLAND, THE HISTORY OF ENGLISH LAW 205-06 (2d ed. 1911).

Rule 3.1

- If there's no obvious volume number, but there is an obvious year, use the year in place of the volume number and omit the date parenthetical
  - Donald A. Dripps, *Delegation and Due Process*, **1988** DUKE L.J. 657.
- If the volume designation has words, put it in brackets to separate it from the source
  - **[1989-1990 Transfer Binder]** Bankr. L. Rep. (CCH) ¶ 66,472.

Rule 3.2

Pages, Footnotes, Endnotes, and Graphical Materials

- You will only ever use "p." or "pp." in internal cross-references
  - Naked page numbers are the way to go all other times
  - MICHELLE OBAMA, BECOMING 153 (2018).

- Unless it would be confusing because of other numbers. Then, use **"at"** set off by a **comma**
  - RAY BRADBURY, FAHRENHEIT 451, **at 6** (1953).

Rule 3.2

- When citing multiple nonconsecutive pages, use commas
  - Kyle v. Anthony, 999 F.3d **660, 660, 665** (11th Cir. 2015).
- When citing page ranges, omit repetitive digits except the last two digits. BUT two Style Guide deviations:
  - S.R. 3.5. Never omit digits for internal cross-references
    - *See supra* note 123-125.
  - S.R. 3.2(a). If there are four or more digits and only one repeats, retain them all
    - 1498-1500 (NOT 1498-500)
    - BUT: 1498-99

Rule 3.2

- To cite a footnote: <page> n.<footnote number>.
  - Example: **695 n.12**. Note NO SPACE between the n. and the footnote #!
- Use "nn." for multiple footnotes on one page
- Nonconsecutive footnotes work the same way as nonconsecutive pages, except with an ampersand instead of last comma
  - Example: 695 **nn.**12, 13 **&** 15.
- Use ampersand to cite a page AND footnote
  - Example: 695 & n.12.

Rule 3.2

- To cite graphical materials: same as footnotes and endnotes, with the appropriate abbreviation (*see* Table 16)
  - 111 YALE L.J. 103, 105 **tbl.2** (2001).
- Use the plural abbreviation for multiple graphs, and use ampersand instead of final comma
  - 111 YALE L.J. 103, 105 **tbls.2, 3 & 4** (2001).

Presumption in Favor of Pincites

- *YLJ* has a strong presumption in favor of pincites in all citations
- Exceptions:
  - *See generally*
  - When a source is cited to for its mere existence

Sections and Paragraphs

- There is always a non-breaking space between the § or ¶ sign and the number!
- When citing two or more sections or paragraphs, use §§ or ¶¶
  - Make sure you are actually citing different sections, though! § 704(a) and § 704(b) are NOT different sections, just different sub-sections
- Separate scattered sections with commas
- Repetitive digit rule for page numbers does NOT apply here!

Internal Cross-References

- Internal cross-references refer to main text or footnotes *in the piece itself* (as opposed to an outside source)
- Use *supra* for materials that has already appeared, *infra* for materials that will appear later.
  - Use Part *X* for the main parts, Section *X.X* for all other subsections
  - The examples in Rule 3.5 are very useful for formatting
- Remember, retain all repetitive digits for internal cross-references!

Internal Cross-References

15. *See* case cited and discussion *supra* note 8.

40. As a matter of fact and common experience, it is no strain to say that a purchaser makes a decision about form of payment that is separate from the decision to purchase a particular product. *See* discussion *infra* note 43.

Rule 4:

Short Citation Forms

Short Citation Forms

- Subject to certain limitations, you can use a **short form** when a source has already been cited in the piece.

  (1) *Id.*

  (2) *Supra*

  (3) Hereinafter

- Rule 4 provides general guidance about short citation forms. Most source types have more specific information. See Rules 10-23 (the last part of each Rule).

Rule 4.1

Id.

- *Id.* refers to the **immediately preceding authority**
  - Note: you cannot use *id.* if the immediately preceding authority is in a string cite
  - Note: you cannot use *id.* to refer to an internal cross-reference.
  - *Id.* skips over parenthetical citations and points back to the main citation.
- *Id.* can also refer to the immediately preceding footnote, but only if that footnote has only one source.

Rule 4.2

Supra

- For ***certain*** sources that have already been cited in full, you can use *supra* as a short form of the source

Supra may be used for	*Supra* may NOT be used for
• periodicals; services • books; pamphlets; reports • legislative hearings • court filings • unpublished materials; nonprint resources • treaties and international agreements • tribal materials • archival materials	• cases • statutes or constitutions • legislative materials (other than hearings) • restatements or model codes • regulations See Rule 4.2 for a more complete list

Different short-form rules apply to these sources!

Rule 4.2

- Format: <last name of author OR full institutional author name OR title>, *supra* <note #>, at <pincite>.
  - [2] **OBAMA, *supra* note 1, at 18.**
- If citing a source in the same footnote, use *supra* without "note"
  - [3] *See* State v. Gounagias, 153 P. 9, 15 (Wash. 1915); *id.* at 20 (discussing the relevant standard of review); WENDY BROWN & JOHN BLACK, STATES OF INJURY: POWER AND FREEDOM 34 (1995); Andrea K. Wilson, *A New Look at "Cases and Controversies,"* 103 HARV. L. REV. 465, 480 (1991); *see also* Wilson, *supra*, at 491 (discussing Colorado cases).

supra v. *supra*

15. *See* case cited and discussion *supra* note 8.

Internal cross-reference

vs.

5. The *American Express* decision has attracted a mountain of commentary and criticism from legal scholars, economists, and antitrust practitioners. *See, e.g.*, DAVID S. EVANS & RICHARD SCHMALENSEE, ANTITRUST ANALYSIS OF PLATFORM MARKETS: WHY THE SUPREME COURT GOT IT RIGHT IN *AMERICAN EXPRESS* (2019); Dennis W. Carlton, *The Anticompetitive Effects of Vertical Most-Favored-Nation Restraints and the Error of* AmEx, 2019 COLUM. BUS. L. REV. 93; Daniel Francis & Jay Ezrielev, *Disaggregating Market Definition:* AmEx *and a Plural View of Market Definition*, 98 NEB. L. REV. 460 (2019); Herbert J. Hovenkamp, *Platforms and the Rule of Reason: The* American Express *Case*, 2019 COLUM. BUS. L. REV. 35. A tip of the cap to my co-counsel in *American Express* for his effort in this regard. *See* Evan Chesler & David Korn, *Lessons from* Amex *for Platform Antitrust Litigation*, 98 NEB. L. REV. 345 (2019).

Short form

43. *See* Francis & Ezrielev, *supra* note 5, at 475 ("[T]he n
jointly and simultaneously consume credit card transa
Justice Breyer, Francis and Ezrielev argue that the trans

31. *See* Carlton, *supra* note 5, at 105-06 ("[A] firm that
in violation of the antitrust laws will have an incen
sided, not one-sided, market in order to take advan

Rule 4.2 – Hereinafter

- Use "hereinafter" as a short form if:
  - (1) The usual *supra* form would be too long and cumbersome, ***or***
  - (2) The usual *supra* form would be confusing (because there are multiple works by the same author in the same footnote)
    - This rule applies even if different typefaces would distinguish the two citations (S.R. 4.2)
- <u>Do not use</u> it if the source is never cited again
- Hereinafter comes before all parentheticals except date (Rule 1.5)

Rule 4.2 – Hereinafter

- Format [hereinafter *X*]:
  - [26] *In re* Multidistrict Priv. Civ. Treble Damage Antitrust Litig. Involving Motor Vehicle Air Pollution Control Equip., 52 F.R.D. 398, 412 (C.D. Cal. 1970) [hereinafter *Air Pollution Control Antitrust Case*].
  - [43] *Air Pollution Control Antitrust Case*, 52 F.R.D. at 421.
  - [50] *See* ROBERT C. ELLICKSON, ORDER WITHOUT LAW: HOW NEIGHBORS SETTLE DISPUTES 34 (1991) [hereinafter ELLICKSON, ORDER WITHOUT LAW]; Robert C. Ellickson, *Unpacking the Household: Informal Property Rights Around the Hearth*, 116 YALE L.J. 226, 256 (2006) [hereinafter Ellickson, *Unpacking the Household*].

Practice Exercises

Practice Exercise

Incorrect text

[1] See SAMUEL MOYN, NOT ENOUGH: HUMAN RIGHTS IN AN UNEQUAL WORLD 15 (2018). *Cf.* Christina Rodríguez, *The President and Immigration Law Redux*, 125 YALE L.J. 104, 107 n.9 (2015) (she argues that President Obama's immigration initiatives were innovative); *but see* Kate Stith, *Justice White and the Law*, 112 YALE L.J. 993, 994-995 (2003) (emphasis in original); Ian Ayres, *Menus Matter*, 74 U. CHI. L. REV. 3, 5 (explaining doctrine). (2006) For additional analysis, *see, e.g.*, STEPHEN CARTER, THE EMPEROR OF OCEAN PARK (2002); Gideon Yaffe, *Criminal Attempts*, 124 YALE L.J. 92, 99 ("there is little uniformity across jurisdictions, or even within them, in how courts deal with cases of any of these three sorts").

Questions?

- Read Admissions Digests & submit to the Anonymous Question Form!
  - Only for things we have discussed in training!
  - Consult *Bluebook* and the Style Guide before asking → better for learning
- Next training on Study Strategies, Monday, Feb. 16, 3:10pm, SLB 122
  - Wingstop :o
- Info on the next Admissions events coming soon!

Practice Exercise

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